



## CHAPTER lxxxvii.

An Act to confirm a Provisional Order under the Burgh Police (Scotland) Act 1892 relating to Broughty Ferry Gas Supply. A.D. 1903.  
[21st July 1903.]

**W**HEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Burgh Police (Scotland) Act 1892 and it is requisite that the said Order should be confirmed by Parliament: 55 & 56 Vict.  
c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation  
of Order in  
schedule.

2. This Act may be cited as the Broughty Ferry Gas Order Confirmation Act 1903. Short title.

A.D. 1903.

## S C H E D U L E.

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### PROVISIONAL ORDER.

WHEREAS by the Burgh Police (Scotland) Act 1892 it is (inter alia) provided (section 45) that whenever it shall appear to the commissioners of any burgh to which that Act applies that they require additional powers for the better carrying out of the purposes of that Act and specially powers relating to the supply of gas or water or to the roads and streets or to drainage or sewers or the utilisation of sewage in addition to the powers conferred by the Public Health Acts or for the repeal or amendment of any local Acts of Parliament relating to such subjects or their adaptation and adjustment to the provisions of the Act now in recital or for the other purposes therein mentioned they may apply to the Secretary for Scotland for a Provisional Order and (section 46) that after such inquiry as the Secretary for Scotland may direct it shall be lawful for him to issue a Provisional Order either in accordance with the prayer of the application or with such modifications or alterations as may appear to him requisite but no Provisional Order shall be of any validity unless the same has been confirmed by Act of Parliament:

And whereas the said Burgh Police (Scotland) Act 1892 is in force within the Burgh of Broughty Ferry (herein-after referred to as "the burgh"):

And whereas by the Broughty Ferry Commissioners Gas Act 1870 (herein-after called "the Act of 1870") the property powers rights and privileges of the Broughty Ferry Gas Light Company in whom the gas supply of the burgh and the suburbs thereof was then vested were transferred to and vested in the Commissioners of Police of the burgh (herein-after referred to as "the Commissioners") who were authorised to maintain improve or alter the gasworks thereby transferred to and vested in them and to erect new works and to manufacture gas and to supply gas to the burgh and the suburbs thereof and to borrow for the purposes of the Act of 1870 any money not exceeding the sum of eight thousand pounds on the security of the undertaking thereby vested in them and of the works and property to be constructed and acquired and also of the several rates and charges leviable by them under the provisions of the Act of 1870 in security of the payment of the money so borrowed and interest thereon:

And whereas the borrowing powers of the Commissioners under the Act of 1870 have from time to time been increased as follows (that is to say) by the General Police and Improvement (Scotland) Act 1862 Order Confirmation (Broughty Ferry) Act 1880 (herein-after called "the Order of 1880") to the sum of fourteen thousand pounds and by the Broughty Ferry Gas and Paving Order Confirmation Act 1899 (herein-after called "the Order of 1899") by which section 62 of the Act of 1870 and the Order of 1880 were cancelled to the sum of twenty-nine thousand pounds:

A.D. 1903.  

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And whereas the Commissioners and the Provost Magistrates and Councillors of the Burgh (herein-after referred to as "the Town Council") the successors under the Town Councils (Scotland) Act 1900 of the Commissioners have expended the said sum of twenty-nine thousand pounds for the purposes of the Act of 1870 and since the fifteenth day of May nineteen hundred and two a further sum of five thousand three hundred and thirty-one pounds two shillings and one penny beyond the amount which they were by the Act of 1870 as amended by the Orders of 1880 and 1899 authorised to borrow in remodelling and extending their retorting plant to meet an unexpected increase in the demand for gas :

And whereas such excess expenditure was unavoidable and could not be delayed :

And whereas the Town Council have presented a Petition to me His Majesty's Secretary for Scotland setting forth that the Burgh and the suburbs thereof have grown and are steadily growing in size and importance and the demand for gas within the limits of supply has increased and is rapidly increasing and that the Town Council are now under the necessity in order to meet such demand to expend in addition to the sum already expended by them as aforesaid in excess of their authorised borrowing powers a considerable sum of money in extending and enlarging their gasworks but that they have no money wherewith to defray the cost thereof and praying for authority to borrow an additional sum of twenty-five thousand pounds :

And whereas it has been represented to me in the said Petition that it is expedient that the Town Council should be authorised to borrow for the purposes aforesaid such additional sum of money upon the security of the undertaking works and property and rates and charges and revenues herein-before mentioned and that with these objects the Act of 1870 should be altered :

And whereas after due inquiry I have resolved to issue a Provisional Order granting authority to borrow an additional sum of twenty thousand pounds in the terms herein-after expressed :

Now therefore in pursuance of the powers vested in me by the Burgh Police (Scotland) Act 1892 I as Secretary for Scotland do by this Provisional Order direct as follows :—

1. This Order may be cited as the Broughty Ferry Gas Order 1903 The Act of 1870 and the Acts confirming the Order of 1899 and this Order may be collectively cited as the Broughty Ferry Gas Acts 1870 to 1903.

Citation of  
Order and  
Acts.

2. From and after the passing of the Act confirming this Order and subject as herein-after provided section 51 of the Act of 1870 shall be read as if the words "forty-nine thousand pounds" had been inserted therein instead of the words "eight thousand pounds."

Power to  
borrow.

3. All money borrowed under the authority of this Order shall be applied only for purposes to which capital is properly applicable.

Application  
of money  
borrowed.

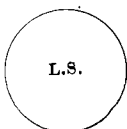
4. The Town Council shall from and after the passing of the Act confirming this Order set apart annually as a sinking fund a sum not less

Repayment of  
money  
borrowed.

**A.D. 1903.** — than three pounds per centum upon all monies from time to time borrowed in exercise of the additional borrowing power conferred by this Order and such sinking fund shall from time to time be applicable to the redemption of mortgages and annuities and to no other purpose and shall be lodged in any of the banks in Scotland incorporated by Act of Parliament or Royal Charter or invested in Government securities or lent out at interest in the name and at the discretion of the Town Council until the same be applied to the purposes before specified.

**Costs of Order.** 5. Section 65 of the Act of 1870 shall be construed as if the costs charges and expenses of and incidental to the preparing for obtaining and confirming this Order or otherwise in relation thereto were part of the costs for the payment of which provision is made by that section. Provided that any money borrowed for such costs charges and expenses shall be repaid in not more than five years.

Given under my hand and seal at Whitehall this eighteenth day of  
May one thousand nine hundred and three.]



BALFOUR OF BURLEIGH.

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Printed by EYRE and SPOTTISWOODE,  
FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

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